CARDONE EQUITY FUND 31, LLC
A Delaware Limited Liability Company

Subscription Booklet

To subscribe for limited liability company interests ("Interests") in Cardone Equity Fund 31, LLC (the "Fund"), a prospective investor must complete the subscription documents contained in this booklet in accordance with the instructions set forth herein. Upon subscription, investors will receive an equal amount of Class A Units, Class B Units and Class D Units. This entire booklet (this "Subscription Booklet") should then be returned to Cardone Capital LLC, the manager of the Fund ("Manager"), by electronic mail to:

Cardone Capital LLC
invest@cardonecapital.com

Please be sure that your name is the same in all signatures and places where it is printed on the Subscription Booklet. Duplicate copies of each signed document will be returned to you after your subscription is accepted and a closing with respect to your subscription for Interests has occurred.

In addition to this Subscription Booklet, each prospective investor should read the Confidential Private Placement Memorandum of the Fund (as supplemented from time to time, the "Memorandum"), and the Limited Liability Company Operating Agreement of the Fund (as amended from time to time, the "Operating Agreement"). NO PERSON IS AUTHORIZED TO RECEIVE THESE SUBSCRIPTION DOCUMENTS UNLESS SUCH PERSON HAS PREVIOUSLY RECEIVED, OR SIMULTANEOUSLY RECEIVES, A COPY OF THE MEMORANDUM. Unless otherwise defined herein, or unless otherwise required by the context, all capitalized terms used in these Subscription Documents have the meanings ascribed to them in the Memorandum.

Subscriptions from suitable prospective investors will be accepted in the sole discretion of the Manager after receipt of all Subscription Booklet, properly completed and executed.

IF YOU HAVE ANY QUESTIONS ABOUT THIS SUBSCRIPTION BOOKLET, PLEASE CONTACT THE INVESTOR RELATIONS DEPARTMENT AT CARDONE CAPITAL LLC AT (305) 407-0276 OR invest@cardonecapital.com.

INSTRUCTIONS TO SUBSCRIBERS

Subscription Agreement	Please read. By signing the Subscription Agreement, you are deemed to have read and accepted the contents in its entirety.
Investor Questionnaire	Please read and complete. Each person subscribing for Interests and co-subscriber must complete the entire Investor Questionnaire and indicate by checking off the proper boxes how each qualifies as an accredited investor ("Accredited Investor") under the Securities Act of 1933, as amended (the "Securities Act").
Subscription Agreement and Investor Questionnaire Signature Page	Please complete, date and sign. Each co-subscriber must complete, date and sign the signature page as well.
Operating Agreement Joinder Agreement	Please complete, date and sign. Each co-subscriber must complete, date and sign the signature page as well.
Schedule K-1 Electronic Delivery Consent Form	Please complete, date and sign. Each co-subscriber must complete, date and sign as well.
Verification of Accredited Investor Status	To comply with Rule 506(c) of Regulation D under the Securities Act, you are required to submit a third-party Verification of Accredited Investor status letter, the form of which is attached hereto as Appendix A
Tax Form	If you are a "United States person" for U.S. federal income tax purposes (i.e., a U.S. citizen, U.S. resident, and/or a corporation, partnership, or other organization organized under the laws of the United States), please complete and execute the Form W-9 in accordance with the instructions accompanying the form. If you are not a "United States person" for U.S. federal income tax purposes, please complete and execute Form W-8BEN or W-8BEN-E, if applicable, or the correct form as per the detailed instructions in Internal Revenue Service Forms and instructions accompanying the forms. If you are claiming benefits under an income tax treaty, you must provide a U.S. taxpayer identification number on Form W-8BEN or W-8BEN-E.
Circumstances in which Beneficial Owners of an Entity Must Also Complete Questionnaire	In certain circumstances, the beneficial owners of an entity (in addition to the entity itself) must complete an Investor Questionnaire. These circumstances include the following circumstances: (i) the entity was formed for the purpose of purchasing Interests; (ii) the entity's Interests (having a value for this purpose equal to its Capital Commitment) constitutes 40% or more of the entity's total assets or committed capital; or (iii) the entity is participant-directed. If any of these circumstances apply, please attach as exhibits a completed Investor Questionnaire for each beneficial owner of the entity.

Payment	Your initial Capital Contribution will be specified by the Manager prior to closing in a separate notice. Payment of an investor's initial Capital Contribution may be made in U.S. Dollars by check, wire transfer, ACH collection or conversion of Approved Cryptocurrency.

SUBSCRIPTION AGREEMENT

ARTICLE I
PURCHASE OF INTERESTS

1.01 Subscription. The undersigned (the "Subscriber") hereby subscribes (the "Subscription") to the number of limited lability company membership interests ("Interests" or "Units") described on the signature page hereto. This Subscription shall become effective when it has been duly executed by the Subscriber and this Subscription Agreement (the "Subscription Agreement") has been accepted and agreed to by the Manager.

1.02 Receipt of Memorandum and Operating Agreement Acknowledged. The Subscriber acknowledges receipt of a copy of the Memorandum and the Operating Agreement.

THE SUBSCRIBER ACKNOWLEDGES THAT THE SUBSCRIBER IS ACQUIRING THE INTERESTS AFTER INVESTIGATION OF THE FUND AND ITS PROSPECTS AND THAT NO OFFER OR SOLICITATION HAS BEEN MADE TO THE SUBSCRIBER EXCEPT THROUGH THE MEMORANDUM. THE SUBSCRIBER FURTHER ACKNOWLEDGES THAT THE SUBSCRIBER IS NOT RELYING UPON ANY REPRESENTATION MADE BY ANY PERSON EXCEPT AS CONTAINED IN THE MEMORANDUM AND THE OPERATING AGREEMENT.

1.03 Payment for Subscription. The Subscriber agrees that when the Subscriber is admitted to the Fund, the Subscriber will be asked to deliver a Capital Contribution in the amount of its Capital Commitment reflected on the signature page hereto.

1.04 Terms and Conditions. The Manager shall have the right to accept or reject the Subscription, in whole or in part, for any reason whatsoever, including, but not limited to, the belief of the Manager that the Subscriber cannot bear the economic risk of an investment in the Fund or upon belief that the Subscriber is not capable of evaluating the merits and risks of an investment in the Fund or that the Subscriber is not an Accredited Investor, or for no reason at all. If this Subscription is rejected in full, or in the event the closing applicable to the Subscriber does not occur (in which event this Subscription shall be deemed rejected), this Subscription Agreement shall thereafter have no force or effect.

ARTICLE II
REPRESENTATIONS AND WARRANTIES

2.01 Representations and Warranties by the Manager. The Manager represents and warrants to the Subscriber that:

(a) The Manager has the full legal right, power and authority to: (i) enter into this Subscription Agreement and to perform the Manager's obligations hereunder; and (ii) execute and deliver this Subscription Agreement, and the consummation of the transactions contemplated herein will not result in a breach or violation of, or a default under, any agreement, law, regulation or decree by which the Fund is bound.

(b) The Subscriber will acquire the Subscriber's Interests free and clear of any liens, charges or encumbrances other than liens, encumbrances or restrictions on transfer created or imposed upon the holders under the Operating Agreement or under applicable state or federal securities laws.

(c) No registration with, application to, approval of, or other action by any U.S. federal, state or other governmental commission or regulatory body is required in connection with this Subscription Agreement and no U.S. federal or state agency has passed upon the Interests or made any findings or determination as to the fairness of this investment.

2.02 Survival of Representations and Warranties. The representations and warranties of the Manager shall survive the consummation of Subscriber's purchase and shall be fully enforceable at law or in equity against the Manager and its successors.

2.03 Disclaimer.

(a) It is specifically understood and agreed by the Subscriber that the Manager and its Affiliates have not made, nor by this Subscription Agreement shall be construed to make, directly or indirectly, explicitly or by implication, any representation, warranty, projection, assumption, promise, covenant, opinion, recommendation or other statement of any kind or nature with respect to the anticipated profits or losses of the Fund.

(b) The Manager has made available to the Subscriber and the Subscriber's accountants, attorneys and other advisors any and all data requested by the Subscriber as a basis for estimating the potential profits and losses of the Fund and the Subscriber acknowledges that the Subscriber has either reviewed such information or has waived review of such information.

2.04 General Representations and Warranties by the Subscriber. The Subscriber represents and warrants to the Manager and the Fund that:

(a) The Subscriber is acquiring the Interests for the Subscriber's own account, as principal, for investment purposes only and not with any intention to resell, distribute or otherwise dispose of or fractionalize the Interests, in whole or in part.

(b) The Subscriber has been furnished, has carefully read, and has relied solely (except for information obtained pursuant to paragraph (c) below), on the information contained in the Memorandum and Operating Agreement and the Subscriber has not received any other offering literature or prospectus and no representations or warranties have been made to the Subscriber by the Manager or the Fund, other than the representations set forth in the Memorandum, the Operating Agreement and this Subscription Agreement.

(c) The Subscriber has had an unrestricted opportunity to: (i) obtain additional information concerning the offering of Interests (the "Offering"), the Interests, the Manager, and the Fund, and any other matters relating directly or indirectly to the Subscriber's purchase of the Interests; and (ii) ask questions of, and receive answers from, the Manager concerning the terms and conditions of the Offering and to obtain such additional information as may have been necessary to verify the accuracy of the information contained in the Operating Agreement or otherwise provided.

(d) The Subscriber is an Accredited Investor. The Subscriber has such knowledge and experience in financial and business matters that he or she is capable of evaluating the merits and risks of investing in the Fund, and all information that the Subscriber has provided concerning the Subscriber, the Subscriber's financial position and knowledge of financial and business matters is true, correct and complete. The Subscriber acknowledges and understands that the Fund will rely on the information provided by the Subscriber in this Subscription Agreement and in the Investor Questionnaire that accompanies this Subscription Agreement for purposes of complying with U.S. federal and applicable state securities laws, and that the information contained therein is complete and accurate as of the date thereof. The Subscriber agrees to furnish any additional information requested by the Fund to assure compliance with federal and applicable state securities laws, including third party confirmation of his, her or its investor status under the Securities Act as required under Rule 506(c) of Regulation D. Any information that has been furnished or that will be furnished by the Subscriber to evidence its status as an Accredited Investor is accurate and complete and does not contain any misrepresentation or material omission. If there should be any change in any statement made herein, after the acceptance of this Subscription Agreement, including, without limitation, a change in Subscriber's status as an "accredited investor", Subscriber shall immediately notify the Company of such change.

(e) Except as otherwise disclosed in writing by the Subscriber to the Manager, the Subscriber has not dealt with a broker in connection with the purchase of the Interests and agrees to indemnify and hold the Manager and the Fund harmless from any claims for brokerage or fees in connection with the transactions contemplated herein.

(f) The Subscriber is not relying on the Manager, the Fund, or the references to any law firm in the Memorandum with respect to any legal, investment or tax considerations involved in the purchase, ownership, and disposition of the Interests. The Subscriber has relied solely on the advice of, or has consulted with, in regard to the legal, investment and tax considerations involved in the purchase, ownership and disposition of the Interests, the Subscriber's own legal counsel, business and/or investment adviser, accountant and tax adviser.

(g) If the Subscriber is a corporation, partnership, trust or other entity: (i) it is authorized and qualified to become a member in, and authorized to make its capital contribution to, the Fund; (ii) the person signing this Subscription Agreement on behalf of such entity has been duly authorized by such entity to do so; and (iii) unless otherwise approved by the Manager, in writing, such entity was not organized or reorganized for the specific purpose of acquiring the Interests.

(h) The Subscriber understands that Interests cannot be sold, assigned, transferred, exchanged, hypothecated or pledged, or otherwise disposed of or encumbered without the prior written consent of the Manager, which may be given or withheld in its sole and absolute discretion, and that no market will exist for the resale of any Interests. The Subscriber understands further that withdrawals are restricted as summarized under "*Summary of Fund Terms*" in the Memorandum. In addition, the Subscriber understands that Interests have not been registered under the Securities Act, or under any applicable state securities or blue-sky laws or the laws of any other jurisdiction, and cannot be resold unless they are so registered or unless an exemption from registration is available. The Subscriber understands that there is no plan to register the Interests under any law.

(i) The Subscriber understands the various risks of an investment in the Fund and that the Manager has conflicts of interest with the Fund, and the Subscriber has carefully reviewed the various risks and conflicts summarized under "*Certain Investment Considerations*" in the Memorandum.

(j) The Subscriber represents that it understands that an investment in the Fund involves significant risks not associated with other investment vehicles and is suitable only for persons of adequate financial means who have no need for liquidity in this investment. **The Subscriber also represents that no assurances or guarantees have been made to the Subscriber by anyone regarding whether the Fund's investment objective will be realized or whether the Fund's investment strategy will prove successful. The Subscriber recognizes that he or she may lose all or a portion of his or her investment in the Fund.** The Subscriber also understands that whether or not he or she is subject to income tax, an investment in the Fund could (if the Fund is successful) create taxable income or tax liabilities in excess of cash distributions to pay such liabilities.

(k) The Subscriber is willing and able to bear the economic risks of an investment in the Fund for an indefinite period of time. The Subscriber offers, as evidence of ability to bear economic risk, the information required hereinafter in this Subscription Booklet. The Subscriber has read and understands the provisions of the Operating Agreement.

(l) The Subscriber maintains its domicile and principal place of business, and is not merely a transient or temporary resident, at the address shown on the signature page of this Subscription Agreement.

(m) Any purchase of Interests will be solely for the account of the Subscriber, and, not for the account of any other person or with a view toward resale, assignment, fractionalization or distribution thereof.

(n) The Subscriber represents that all of the information contained in this Subscription Agreement is complete and accurate and that the Subscriber will notify the Manager immediately of any material change in any such information. The Subscriber understands that the Manager will rely on the information contained herein.

(o) The Subscriber represents that it has relied solely upon investigations made by himself/herself, his/her attorney and accountant and agents in making the decision to participate in the Offering. Subscriber further acknowledges that no statement, printed material or inducement has been given or made by the Fund or its representatives which is contrary to the information contained in the Memorandum.

(p) The Subscriber understands and expressly agrees that the Manager shall not be liable to the Fund or to the Subscriber for any loss or damage sustained by the Fund or by the Subscriber by reason of any act performed for and on behalf of the Fund or in furtherance of the Fund's business, or by reason of any inaction, except for action or inaction that is finally determined by a court of competent jurisdiction to have constituted fraud or bad faith and any liability of the Manager for any breach of any fiduciary duty not comprehended by the express language contained in the foregoing and any such fiduciary duty itself are hereby waived, all as provided and set forth in the Memorandum and the Operating Agreement.

(q) Except as specifically disclosed by the Subscriber in the Investor Questionnaire, the Subscriber is not a Benefit Plan Investor.[1]

(r) The Subscriber represents that neither (i) the Subscriber, nor (ii) any entity that controls the Subscriber or is under the control of, or under common control with, the Subscriber, is subject to any "bad actor" disqualifications described in Rule 506(d)(1)(i) through (viii), as modified by Rules 506(d)(2) and (d)(3), under the Securities Act, except for disqualifications covered by Rule 506(d)(2)(ii) or (III) under the Securities Act and disclosed in writing in reasonable detail to the Fund. The Subscriber represents that it has exercised reasonable care to determine the accuracy of the representation made by the Subscriber in this Section, and agrees to notify the Fund if it becomes aware of any fact that makes the representation given by it hereunder inaccurate.

(s) The Subscriber acknowledges that the Manager seeks to comply with all applicable laws and regulations concerning money laundering, organized crime, anti-bribery, economic sanctions, and terror financing and related activities (collectively "Anti-Money Laundering Laws") including, without limitation, the U.S. Bank Secrecy Act of 1970, as amended, the U.S. Money Laundering Control Act of 1986, as amended, the Uniting and Strengthening America by Providing Appropriate Tools Required to Intercept and Obstruct Terrorism Act of 2001, as amended, the Foreign Corrupt Practices Act of 1977, or any similar U.S. federal, state or foreign law or regulation. In that regard:

(1) In order to assist the Manager and the Fund in complying with their obligations under the Anti-Money Laundering Laws, the Subscriber agrees to promptly provide such information and documentation as the Manager may hereafter reasonably request. In addition, the Subscriber understands that in order to comply with the Anti-Money Laundering Laws, the Manager may require such information or documentation from the Subscriber before its admission to the Fund, and may also require further information or documentation from time to time thereafter.

(2) In the event of a delay or failure by the Subscriber to produce any requested information or documentation, the Manager may refuse to accept the subscription for the Interest and the monies relating thereto. The Subscriber also agrees that the Manager, the Investment Advisor, and the Fund and their respective Affiliates, partners, members, directors, officers and agents shall be held harmless and indemnified against any loss arising from or in connection with a delay or failure to process any subscription pursuant to this Subscription Agreement if any information or documentation required by the Manager or the Fund has not been provided by the Subscriber on a timely basis.

(3) Notwithstanding any other provision of this Agreement, the Subscriber covenants that it will not Transfer all or any part of the Interest (or purport to do so) if such Transfer will cause (A) the Fund or

[1] "Benefit Plan Investor" means an "employee benefit plan" as defined in Section 3(3) of the Employee Retirement Income Security Act of 1974, as amended ("ERISA") (whether or not subject to Title I of ERISA) or a "plan" as defined in Section 4975(e)(1) of the Code or any entity whose underlying assets include any such employee benefit plan or plans by reason of investment in the entity. Generally, such a plan would include any plan, fund or program that is established or maintained for the purpose of providing medical, surgical or hospital care or benefits, or benefits in the event of sickness, accident, disability, death or unemployment, or vacation benefits, apprenticeship or other training programs, or day care centers, scholarship funds, prepaid legal services, holiday or severance benefits or retirement income, or income deferred to periods extending to the termination of employment or beyond, a trust described in Section 401(a) of the Code or a plan described in Section 403(a) of the Code, which trust or plan is exempt from tax under Section 501(a) of the Code, an individual retirement account described in Section 408(a) of the Code or an individual retirement annuity described in Section 408(b) of the Code.

the Manager to be in violation of any Anti-Money Laundering Law; or (B) the Interest to be held by any person or entity with whom U.S. persons are prohibited from dealing under the laws and regulations administered by the Office of Foreign Assets Control of the U.S. Treasury Department ("OFAC").

(4) The Subscriber, if an entity, acknowledges that: (i) it has carried out thorough due diligence to establish the identities of its beneficial owners; (ii) it holds the evidence of such identities and status and will maintain such information for at least five years from the date of its complete withdrawal from the Fund; and (iii) it will make available such information (and any additional information that the Manager or the Fund may require) upon request.

(5) The Subscriber does not know or have any reason to suspect that (i) the monies used or to be used to make the Subscriber's Capital Contributions to the Fund are, were or will be derived from or related to any illegal activities, including but not limited to, any activities that may contravene federal, state or international laws and regulations, including Anti-Money Laundering Laws, and (ii) the proceeds from the Subscriber's investment in the Fund will be used to finance any activities that may contravene federal, state or international laws and regulations, including Anti-Money Laundering Laws. In furtherance thereof, the Subscriber further acknowledges, represents and warrants to, and agrees with, the Manager and the Fund as follows:

(i) The representations and warranties set forth in this Section 2.04(s) shall be deemed repeated and reaffirmed by the Subscriber as of each date that the Subscriber is required to make Capital Contributions to, or receives a distribution from, the Fund.

(ii) The Subscriber hereby represents and warrants that, to the best of its knowledge, none of: (i) the Subscriber; (ii) any person controlling or controlled by the Subscriber; (iii) if the Subscriber is a privately held entity, any person having a beneficial interest in the Subscriber; or (iv) any person for whom the Subscriber is acting as agent or nominee in connection with this investment is a country, territory, individual or entity named on an OFAC list, nor is a person or entity prohibited under the OFAC Programs. The lists of OFAC prohibited countries, territories, persons and entities can be found on the OFAC website at <http://www.treas.gov/ofac>. In addition, the programs administered by OFAC ("OFAC Programs") prohibit dealing with individuals or entities in certain countries regardless of whether such individuals or entities appear on the OFAC lists.

(iii) The Subscriber represents and warrants that, to the best of its knowledge, none of: (i) the Subscriber; (ii) any person controlling or controlled by the Subscriber; (iii) if the Subscriber is a privately held entity, any person having a beneficial interest in the Subscriber; or (iv) any person for whom the Subscriber is acting as agent or nominee in connection with this investment is a senior foreign political figure,[2] any immediate family member[3] or close associate[4] of a senior foreign political figure as such terms are defined in the footnotes below.

(iv) The Subscriber is not a non-U.S. banking institution (a "Foreign Bank") and does not receive deposits from, makes payments on behalf of, or handles other financial transactions related to a Foreign Bank.

(v) The Manager may, by law, be obligated to "freeze the account" of the Subscriber, either by prohibiting additional Capital Contributions from the Subscriber, declining any Transfer or

[2] A "senior foreign political figure" is defined as a senior official in the executive, legislative, administrative, military or judicial branches of a non-U.S. government (whether elected or not), a senior official of a major non-U.S. political party, or a senior executive of a non-U.S. government-owned corporation. In addition, a "senior foreign political figure" includes any corporation, business or other entity that has been formed by, or for the benefit of, a senior foreign political figure.

[3] "Immediate family" of a senior foreign political figure typically includes the figure's parents, siblings, spouse, children and in-laws.

[4] A "close associate" of a senior foreign political figure is a person who is widely and publicly known to maintain an unusually close relationship with the senior foreign political figure, and includes a person who is in a position to conduct substantial U.S. and non-U.S. financial transactions on behalf of the senior foreign political figure.

withdrawal requests with respect to such Interest and/or segregating the assets of the Subscriber in respect of the Fund in compliance with governmental regulations, and the Manager or its Affiliates may also be required to report such action and to disclose the Subscriber's identity to applicable governmental or regulatory authorities.

(vi) The Manager may, by written notice to the Subscriber, suspend the payment of any distributions otherwise payable to the undersigned if the Manager reasonably deems it necessary to do so to comply with Anti-Money Laundering Laws to the Fund, the Manager, or any Affiliates of the foregoing, or any other service providers of the Fund, the Manager, or any Affiliates of the foregoing.

(6) The Subscriber understands and agrees that any withdrawal or redemption proceeds paid to it will be paid to the same account from which the Subscriber's investment in the Fund was originally remitted, unless the Manager, in its sole discretion, agrees otherwise.

(7) By subscribing for the Interest, the Subscriber consents to the disclosure by the Manager of any information about it or about any beneficial owner to any relevant regulators and others upon request in connection with money laundering and similar matters both in the United States and in other jurisdictions.

(t) No View to Tax Benefits; Adverse Tax Consequences. The Subscriber is not acquiring the Interest with a view to realizing any benefits under U.S. federal income tax laws, and no representations have been made to the Subscriber that any such benefits will be available as a result of the Subscriber's acquisition, ownership or disposition of the Interest. The Subscriber has consulted its own accountant or tax adviser with respect to the tax consequences resulting from its acquisition, ownership or disposition of the Interest. The Subscriber is aware that the Fund intends to engage in transactions that may result in the recognition of "unrelated business taxable income" upon which certain investors who are normally exempt from U.S. federal income tax would be taxable. The Subscriber is aware that in any given year it may have substantial taxable income attributable to the Fund even though the Fund did not make distributions to it. The Subscriber is further aware that (i) a transaction undertaken by the Fund, or a tax accounting rule applicable to the Fund, may give rise to an allocation of taxable income to a Subscriber in an amount greater than the amount of income that such Subscriber would consider itself to have earned as an economic matter (including, but not limited to, allocations of taxable income resulting in taxation in excess of cash or property distributions in each case from the Fund to the Subscriber), (ii) such "phantom income" often may be reversed only with a corresponding deduction or loss in a later year and (iii) any such loss may be a capital loss that may not be used to offset ordinary income.

(u) Publicly Traded Partnership. The following representations are included with the intention of enabling the Fund to qualify for the benefit of a "safe harbor" under Treasury Regulations from treatment of the Fund as an entity subject to corporate income tax. Either:

(1) The Subscriber is not a partnership, grantor trust, or Subchapter S corporation for U.S. federal income tax purposes, or

(2) The Subscriber is a partnership, grantor trust, or Subchapter S corporation for U.S. federal income tax purposes, but (i) at no time during the term of the Fund will 65% or more of the value of any beneficial owner's direct or indirect interest in the Subscriber be attributable to the Subscriber's interests in the Fund, (ii) less than 65% of the value of the Subscriber is attributable to the Subscriber's interests in the Fund, and (iii) permitting the Fund to satisfy the 100-partner limitation set forth in Section 1.7704-1(h)(1)(ii) of the Treasury Regulations is not a principal purpose of any beneficial owner of the Subscriber in investing in the Fund through the Subscriber.

If the Subscriber is unable to make either of the foregoing representations, the Subscriber is advised to discuss with the Manager whether the Subscriber can provide other evidence (including opinions of counsel, if requested) satisfactory in form and substance to the Manager relating to the status of the Fund under Section 7704 of the Code.

ARTICLE III
MISCELLANEOUS

3.01 Amendment of Operating Agreement and Certificate of Formation. The Manager may request parties execute an amendment of the Operating Agreement, and, if necessary, to execute and file an amendment of the Fund's Certificate of Formation to conform to and embody the terms and conditions of this Subscription Agreement.

3.02 Addresses and Notices. The address of each party for all purposes shall be the address set forth on the first page of this Subscription Agreement or on the signature page annexed hereto, or such other address of which the other parties have received written notice. Any notice, demand or request required or permitted to be given or made hereunder shall be in writing and shall be delivered in person or when sent to such party at such address by hand delivery, electronic mail, facsimile, registered mail or overnight courier service, return receipt requested. Any notice shall be deemed to have been duly given if personally delivered or sent by the mails or by electronic mail and will be deemed received, unless earlier received, (w) if sent by certified or registered mail, return receipt requested, five business days after being deposited in the United States mail, postage prepaid, return receipt requested, (x) if sent by overnight courier, on the next business day after being deposited for next day delivery with Federal Express or a similar overnight courier, (y) if sent by electronic mail or facsimile transmission, when receipt is acknowledged, if faxed or sent by electronic mail on a business day, or the next business day following the day on which receipt is acknowledged if faxed or sent by electronic mail on a day that is not a business day and (z) if delivered by hand, on the date of delivery if delivered on a business day, or the next business day after delivery if delivered by hand on a day that is not a business day.

3.03 Titles and Captions. All Article and Section titles or captions in this Subscription Agreement are for convenience only. They shall not be deemed part of this Subscription Agreement and do not in any way define, limit, extend or describe the scope or intent of any provisions hereof.

3.04 Assignability. Except as provided in the Operating Agreement, this Subscription Agreement is not transferable or assignable by the undersigned.

3.05 Pronouns and Plurals. Whenever the context may require, any pronoun used herein shall include the corresponding masculine, feminine or neuter forms. The singular form of nouns, pronouns and verbs shall include the plural and vice versa.

3.06 Further Action. The parties shall execute and deliver all documents, provide all information and take or forbear from taking all such action as may be necessary or appropriate to achieve the purposes of this Subscription Agreement. Each party shall bear its own expenses in connection therewith.

3.07 Applicable Law. This Subscription Agreement shall be construed in accordance with and governed by the laws of the State of Delaware without regard to Delaware conflict of law rules.

3.08 Binding Effect. This Subscription Agreement shall be binding upon and inure to the benefit of the parties hereto and their respective heirs, administrators, successors, legal representatives, personal representatives, permitted transferees and permitted assigns. If the undersigned is more than one person, the obligation of the undersigned shall be joint and several and the agreements, representations, warranties and acknowledgments herein contained shall be deemed to be made by and be binding upon each such person and such person's heirs, executors, administrators and successors.

3.09 Integration. This Subscription Agreement, together with the Operating Agreement, constitutes the entire agreement among the parties pertaining to the subject matter hereof and supersedes and replaces all prior oral or written and contemporaneous oral agreements and understandings pertaining thereto. No covenant, representation or condition not expressed in this Subscription Agreement shall affect or be deemed to interpret, change or restrict the express provisions hereof.

3.10 Amendment. This Subscription Agreement may be modified or amended only with the written approval of all parties.

3.11 Creditors. None of the provisions of this Subscription Agreement shall be for the benefit of or enforceable by creditors of any party.

3.12 Waiver. No failure by any party to insist upon the strict performance of any covenant, agreement, term or condition of this Subscription Agreement or to exercise any right or remedy available upon a breach thereof shall constitute a waiver of any such breach or of such or any other covenant, agreement, term or condition.

3.13 Rights and Remedies. The rights and remedies of each of the parties hereunder shall be mutually exclusive, and the implementation of one or more of the provisions of this Subscription Agreement shall not preclude the implementation of any other provision.

3.14 Counterparts. This Subscription Agreement may be executed in counterparts, all of which taken together shall constitute one agreement binding on all the parties notwithstanding that all the parties are not signatories to the original or the same counterpart.

3.15 Indemnity. The Subscriber agrees to indemnify and hold harmless the Manager, the Investment Advisor, the Fund, any of their respective Affiliates, any director, officer, manager, member, employee or agent of the Manager, the Investment Advisor or any such Affiliate, and each other person, if any, who controls any such entity within the meaning of Section 15 of the Securities Act against any and all loss, liability, claim, damages and expense whatsoever (including, but not limited to, any and all expenses whatsoever reasonably incurred in investigating, preparing or defending against any litigation commenced or threatened or any claim whatsoever) arising out of or based upon any breach or failure by the Subscriber to comply with any representation, warranty, covenant or agreement made by the Subscriber herein or in any other document furnished by the undersigned to any of the foregoing in connection with this Subscription Agreement. The reimbursement and indemnity obligations of the Subscriber under this paragraph shall be in addition to any liability which the Subscriber may otherwise have (including, without limitation, liabilities under the Operating Agreement), and shall be binding upon and inure to the benefit of any successors, assigns, heirs, estates, executors, administrators and personal representatives of the parties indemnified hereunder.

3.16 Power of Attorney. The Subscriber hereby irrevocably makes, constitutes and appoints the Manager, with power of substitution, its true and lawful attorney-in-fact for purposes of executing the Operating Agreement, including any amendments thereto, any other document required to reflect the admission of any Member, any other document required to reflect any action taken by the Members in accordance with the Operating Agreement, any document that may be required by any regulatory body or other agency, state or other jurisdiction in which the Fund is doing or intends to do business, any certificate of dissolution or cancellation of the Fund's Certificate of Formation, and any document required to continue or terminate the business of the Fund for and on behalf of the Subscriber. The undersigned hereby agrees to be bound by all of the terms and conditions of the Operating Agreement.

3.17 Withholding Forms. The Subscriber represents, warrants and agrees (for the benefit of the Manager and then Fund and of any person who participated in the offer or sale of the Interest) that it will provide in a timely manner a properly completed U.S. Internal Revenue Service Tax Form W-8BEN, W-8BEN-E, W-8IMY, W-8EXP or W-8ECI or W-9, as appropriate (together, the "Withholding Forms"). A blank Form W-9 is attached hereto for your convenience. The Subscriber agrees that it will cooperate with the Manager as the Manager reasonably requests with respect to tax matters. The Subscriber hereby acknowledges that its failure to cooperate with the Manager may expose the Subscriber to taxes, interest and penalties and interest thereon. The Subscriber also agrees to indemnify and hold harmless the Manager, the Fund and their respective direct or indirect partners, members, managers, stockholders, officers, directors, trustees, employees, advisors, consultants, personnel, agents and affiliates for any liabilities arising against them as a result of the Subscriber's failure to cooperate with the Manager and/or provide true, correct and complete Withholding Forms. The Subscriber further expressly acknowledges that such Withholding Forms and any withholding information may be provided to any withholding agent that has control, receipt or custody of any proceeds attributable to the Subscriber.

THE INTERESTS HAVE NOT BEEN REGISTERED UNDER THE SECURITIES ACT AND MAY NOT BE SOLD OR OTHERWISE TRANSFERRED (I) UNLESS THE SAME HAS BEEN INCLUDED IN AN EFFECTIVE REGISTRATION STATEMENT UNDER THE SECURITIES ACT OR (II) AN APPROPRIATE OPINION OF COUNSEL TO THE FUND HAS BEEN OBTAINED STATING THAT

REGISTRATION IS NOT REQUIRED. IN ADDITION, TRANSFER OR OTHER DISPOSITION OF THE INTERESTS IS RESTRICTED AS PROVIDED IN THE OPERATING AGREEMENT.

ARTICLE IV
DISPUTE RESOLUTION

4.01 Exclusive Remedy – Binding Arbitration. **THE SOLE AND EXCLUSIVE REMEDY FOR ANY DISPUTE SHALL BE BINDING ARBITRATION**. To the greatest extent permitted by law, no party to this Agreement or any of their affiliates shall have the right to pursue, in court or through any other judicial or administrative proceeding, any dispute, claim, controversy, or cause of action arising out of or relating to the Investor's investment, this Agreement, any subscription agreement, any offering documents, any investment in real property or other assets sponsored by (a) Cardone Capital, LLC, its affiliates, subsidiaries, managers, officers, directors, employees, agents, and representatives, (b) Grant Cardone, or (c) any other investor in any investment sponsored, managed, or affiliated with Cardone Capital or Grant Cardone (collectively, the "Cardone Party"), or any relationship between the Investor and any Cardone Party (each, a "Dispute"). Instead, any and all Disputes shall be resolved through binding arbitration. The arbitration will be administered by Judicial Arbitration & Mediation Services, Inc. (JAMS) under its Streamlined Arbitration Rules & Procedures effective June 1, 2021 (the "JAMS Rules"). The arbitration shall be conducted as follows:

(a) The arbitration shall be conducted before a single arbitrator to be selected by the parties to the arbitration (the "Dispute Parties") within fourteen (14) days of service of the demand for arbitration or, absent agreement by the Dispute Parties, to be selected by JAMS's process in place at the time of the demand for arbitration. Unless otherwise agreed to in writing by the parties, the arbitrator shall reside in the Miami, Florida metropolitan area.

(b) THE PARTIES AGREE TO ARBITRATE SOLELY ON AN INDIVIDUAL BASIS, AND AGREE THAT THIS AGREEMENT DOES NOT PERMIT CLASS ARBITRATION OR ANY CLAIMS BROUGHT AS A PLAINTIFF OR CLASS MEMBER IN ANY CLASS OR REPRESENTATIVE ARBITRATION PROCEEDING. ABSENT THE WRITTEN CONSENT OF ALL DISPUTE PARTIES, THE ARBITRATOR MAY NOT CONSOLIDATE MORE THAN ONE PARTY'S CLAIMS AND MAY NOT PRESIDE OVER ANY FORM OF A REPRESENTATIVE OR CLASS PROCEEDING AND JAMS MAY NOT ORDER A CLASS ARBITRATION. IN THE EVENT THE FOREGOING PROHIBITION ON CLASS ARBITRATION IS DEEMED INVALID OR UNENFORCEABLE, THEN THE REMAINING PORTIONS OF THE ARBITRATION AGREEMENT WILL REMAIN IN FORCE.

(c) The parties agree to evenly split the fees and costs of the arbitration as invoiced by JAMS, but otherwise each party shall bear their own fees and costs associated with the arbitration.

(d) The arbitration shall be final and binding on the parties, shall be non-appealable and judgment upon any award rendered by the arbitrator may be entered in any court having jurisdiction thereof.

(e) The arbitrator shall have the power to rule on any challenge to its own jurisdiction or the validity or enforceability of any portion of the dispute resolution provisions in Section 16.15 of the Operating Agreement.

(f) The arbitrator shall have no authority to award punitive, exemplary, incidental, indirect, special, or consequential damages, or any damages other than actual compensatory damages. To prevent irreparable harm, the arbitrator may grant temporary or permanent injunctive or other equitable relief.

(g) The arbitration shall be confidential, and no party shall disclose the existence, content, or results thereof without the prior written consent of all parties, except as required by law.

(h) This arbitration agreement shall be governed by the Federal Arbitration Act (9 U.S.C. § 1 et seq.) and, to the extent not inconsistent therewith, the laws of the State of Delaware without regard to conflict of laws principles.

(i) The arbitration hearing shall be held in Miami, Florida, and the parties waive any objections that they may have based on improper venue or *forum non conveniens*.

(j) The arbitrator shall issue an award in writing within fourteen (14) days from the close of the hearing. In the event the Claimant unsuccessfully challenges the enforceability of this Section 16.15, and the Respondent is forced to compel arbitration in court, the arbitrator shall award the fees and costs arising from compelling arbitration to the Respondent, either as an addition to the Respondent or as a set-off against any award to the Claimant.

4.02 Limitations on Actions. No party may bring a claim or action, regardless of form, arising out of or related to this Agreement, including any claim of fraud, misrepresentation, or fraudulent inducement, more than one year after the cause of action accrues.

4.03 Survival and Severability. This Section shall survive the termination or expiration of the Operating Agreement. If any provision of Section 16.15 of the Operating Agreement is held to be unenforceable, the remainder of Section 16.15 of the Operating Agreement shall remain in full force and effect, and the unenforceable provision shall be reformed to the minimum extent necessary to make it enforceable. If for any reason, despite the terms hereof, any Dispute must be resolved in court, each Member irrevocably consents and agrees that any legal action or proceeding with respect to the Operating Agreement and any action for enforcement of any judgment in respect thereof shall be brought in the courts of the State of Florida for Miami-Dade County or the United States federal courts for the Southern District of Florida, and, by execution and delivery of the Operating Agreement, each Member hereby submits to and accepts for itself and in respect of its property, generally and unconditionally, the non-exclusive jurisdiction of the aforesaid courts and appellate courts from any appeal thereof. and irrevocably waives all right of trial by jury.

4.04 Acknowledgment. By executing the Operating Agreement or subscribing for an interest in the investment, the Investor expressly acknowledges that it has read and understood this arbitration and litigation waiver provision, that it has had the opportunity to consult with independent legal counsel, and that it voluntarily and knowingly agrees to be bound by its terms. The Investor further acknowledges that this provision is a material inducement for the Cardone Party to accept the Investor's subscription.

Initial Here:_____

INVESTOR QUESTIONNAIRE

PART 1 – GENERAL SUBSCRIBER INFORMATION

Subscriber represents and warrants that the following information is true and complete:

Name of Subscriber: _____

Date of Birth/Formation: _____

Social Security or Taxpayer ID No.: _____

Citizenship (if applicable): _____

U.S. State or Foreign Country of Formation (if applicable): _____

Type of owner or form of ownership:

☐	Individual	☐	Joint Tenants with Right of Survivorship	☐	Tenants in Common
☐	Trust	☐	Limited Liability Company	☐	Partnership
☐	Corporation	☐	Individual Retirement Account (IRA)	☐	401(k) Plan
☐	Other Specify: _____				

Address (Principal Place of Residence or Business):

_____

_____

_____

Mailing Address, if different:

_____

_____

_____

Telephone number: (_____) _____-_____ Fax number: (_____) _____-_____

Email: _____

Copies of reports, including statements and letters should be sent to:

_____

_____

If the Subscriber is a corporation, limited liability company, partnership or a trust, please provide the names and addresses of the officers, directors, partners, managers, members and principal beneficiaries as the case may be. *To the extent the context permits, all of the information in this questionnaire is furnished on behalf of and is applicable to each of the persons listed below. The Manager may require any one of these individuals to complete a separate Investor Questionnaire.*

_____

_____

_____

PART 2 – ACCOUNT INFORMATION FOR ACH PAYMENTS TO SUBSCRIBER – INFORMATION THAT WILL NEED TO BE PROVIDED IN THE INVESTOR PORTAL:

Name of Bank: _____

Address: _____

SWIFT/ABA/CHIPS/UID: _____

Account name: _____

Account number: _____

Account type (check one):

☐ Personal Checking ☐ Personal Savings ☐ Business Checking ☐ Business Savings

Under Reference: _____

Special Instructions (if applicable): _____

Unless notified otherwise, the Fund will use the foregoing bank account details in the case of withdrawals from the Fund.

PART 3 – ACCREDITED INVESTOR STATUS

The Manager will accept subscription offers only from persons who are "Accredited Investors," as that term is defined in Regulation D under the Securities Act.

I. Qualification as an Accredited Investor.

PLEASE CHECK THE APPROPRIATE SPACE(S) IN THIS SECTION INDICATING THE BASIS ON WHICH YOU QUALIFY AS AN ACCREDITED INVESTOR.

☐ **1.** **Individual with Net Worth In Excess of $1 Million.** A natural person (not an entity) whose net worth, or joint net worth with his or her spouse or spousal equivalent, at the time of purchase exceeds $1 million. (In calculating net worth, you may include your equity in personal property and real estate, including, cash, short-term investments, stock and securities. Your inclusion of equity in personal property and real estate should be based on the fair market value of such property less debt secured by such property. You may not include the net value of your primary residence.)

☐ **2.** **Individual with a $200,000 Individual Annual Income or a $300,000 Joint Annual Income.** A natural person (not an entity) who had an individual income of more than $200,000 in each of the preceding two calendar years or who had joint income with his or her spouse or spousal equivalent in excess of $300,000 in each of the preceding two calendar years, and has a reasonable expectation of reaching the same income level in the current year.

☐ **3.** **Corporation, Foundation, Endowment, Partnership or Limited Liability Company.** An organization described in section 501(c)(3) of the Internal Revenue Code, corporation, Massachusetts or similar business trust, partnership, or limited liability company that has in excess of $5 million of assets and was not formed for the specific purpose of acquiring Interests in the Company.

If an S-Corporation indicate the number of shareholders _____

If a general, limited, or limited liability partnership indicate the number of partners _____

If a limited liability company indicate the number of members ____

☐ **4.** **Revocable Trust.** A trust that is revocable by its grantors and each of whose grantors is an Accredited Investor. (If this category is checked, please also check the additional category or categories under which the grantor qualifies as an Accredited Investor. Additional documentation may be requested.)

Indicate the number of grantors ___ and the number of living beneficiaries other than grantors ___

☐ **5.** **Irrevocable Trust.** A trust (other than an ERISA plan) that (i) is not revocable by its grantors, (ii) has in excess of $5 million of assets, (iii) was not formed for the specific purpose of acquiring Interests in the Company, and (iv) is directed by a person who has such knowledge and experience in financial and business matters that such person is capable of evaluating the merits and risks of an investment in the Company.

☐ **6.** **Bank.** A bank, as defined in Section 3(a)(2) of the Securities Act, or any savings and loan association or other institution as defined in Section 3(a)(5)(A) of the Securities Act, whether acting in an individual or a fiduciary capacity.

☐ **7.** **Broker or Dealer.** A broker or dealer registered under Section 15 of the Securities Exchange Act of 1934, as amended.

☐ **8.** **Registered Investment Adviser.** An investment adviser registered pursuant to Section 203 of the Investment Advisers Act of 1940 or registered pursuant to the laws of a state.

☐ **9.** **Exempt Investment Adviser.** An investment adviser relying on the exemption from registering with the SEC under Section 203(l) or (m) of the Investment Advisers Act of 1940.

☐ **10.** **Insurance Company.** An insurance company as defined in section 2(13) of the Securities Act.

☐ **11.** **Investment Company.** An investment company registered under the Investment Company Act of 1940 or a business development company as defined in section 2(a)(48) of that act.

☐ **12.** **Small Business Investment Company.** A Small Business Investment Company licensed by the U.S. Small Business Administration under section 301(c) or (d) of the Small Business Investment Act of 1958.

☐ **13.** **Rural Business Investment Company.** A Rural Business Investment Company as defined in section 384A of the Consolidated Farm and Rural Development Act.

☐ **14.** **Government Plan.** Any plan established and maintained by a state, its political subdivisions, or any agency or instrumentality of a state or its political subdivisions, for the benefit of its employees, if such plan has total assets in excess of $5 million.

☐ **15.** **Employee Benefit Plan.** An employee benefit plan within the meaning of the Employee Retirement Income Security Act of 1974, if the investment decision is made by a plan fiduciary, as defined in section 3(21) thereof, which is either a bank, savings and loan association, insurance company or registered investment adviser, or if the employee benefit plan has total assets in excess of $5 million or, if a self-directed plan, with investment decisions made solely by persons that are Accredited Investors.

☐ **16.** **Private Business Development Company.** A private business development company as defined in Section 202(a)(22) of the Investment Advisers Act of 1940.

☐ **17.** **Licensed Representative.** A natural person who holds, in good standing, one of the following professional licenses: the General Securities Representative license (Series 7), the Private Securities Offerings Representative license (Series 82), or the Investment Adviser Representative license (Series 65).

☐ **18.** **Family Office.** A "family office," as defined in rule 202(a)(11)(G)-1 under the Investment Advisers Act of 1940 (i) with assets under management in excess of $5 million, (ii) that is not formed for the specific purpose of acquiring the securities offered, and (iii) whose prospective investment is directed by a person who has such knowledge and experience in financial and business matters that such family office is capable of evaluating the merits and risks of the prospective investment.

☐ **19.** **Family Client.** A "family client," as defined in rule 202(a)(11)(G)-1 under the Investment Advisers Act of 1940, of a family office meeting the requirements in paragraph (18) above and whose prospective investment in the issuer is directed by such family office pursuant to paragraph (18)(iii) above.

☐ **20.** **Executive Officer or Director of the Company or Manager.** A natural person who is an executive officer, director or manager of the Company or Manager.

☐ **21.** **Other Entity.** Any entity, of a type not listed in paragraphs (3) – (16) or (22), not formed for the specific purpose of acquiring the securities offered, owning investments in excess of $5 million. For purposes of this paragraph, "investments" means investments as defined in Rule 2a51-1(b) under the Investment Company Act of 1940.

☐ **22.** **Entity Owned Entirely By Accredited Investors.** A corporation, partnership, limited liability company, private investment company or other entity each of whose equity owners is an Accredited Investor. (If this category is checked, please also check the additional category or categories under which each equity owner qualifies as an Accredited Investor. Additional documentation may be requested.)

II. **<u>Accredited Investor Supporting Documentation and Certification</u>**.

The Fund is obligated to verify your status as an Accredited Investor in accordance with Rule 506(c) of Regulation D. UNLESS OTHER VERIFICATION IS PROVIDED OR AVAILABLE WHICH IS APPROVED BY THE MANAGER, PLEASE CHECK THE APPROPRIATE SPACE(S) IN THIS SECTION INDICATING THE BASIS ON WHICH YOUR QUALIFICATION AS AN ACCREDITED INVESTOR WILL BE VERIFIED.

☐ **1. Third Party Verification**. You will provide a completed and executed Verification of Accredited Investor Status form attached hereto as Appendix A ("**Third Party Verification Letter**").

☐ **2. Individual Investor Making a Significant Investment**. You certify that all of the following statements are true:

(a) You are an Accredited Investors by virtue of certifying to Part 3, Section I (1) (Individual with Net Worth In Excess of $1 Million) or Part 3, Section I (2) (Individual with a $200,000 Individual Annual Income or a $300,000 Joint Annual Income), above (collectively, the foregoing "**Eligible Individual Accredited Investor Categories**");

(b) You are making an investment of at least $200,000 in the Fund, and

(c) Your investment in the Fund is not financed in whole or in part by any third party for the specific purpose of making the particular investment in the Fund.

☐ **3. Individual Investor with Significant Previous Investments**. You certify that all of the following statements are true:

(a) You are an Accredited Investors by virtue of being in an Eligible Individual Accredited Investor Category;

(b) Your investment in the Fund is not financed in whole or in part by any third party for the specific purpose of making the particular investment in the Fund;

(c) At the time of your investment the aggregate amount of your investments in all funds managed by Cardone Capital, LLC ("**Other Cardone Funds**") is equal to or greater than $2,000,000;

(d) Your investments in Other Cardone Funds was not financed in whole or in part by any third party for the specific purpose of making the particular investment in the Other Cardone Funds, and none of your investments in Other Cardone Funds are currently used as collateral for any borrowed funds; and

(e) You have submitted a Third Party Verification Letter in connection with your investment in one or more of the Other Cardone Funds.

☐ **4. Entity Accredited by Total Assets Making a Significant Investment.** You certify that all of the following statements are true:

(a) You are an Accredited Investors by virtue of certifying to Part 3, Section I (3)(Corporation, Foundation, Endowment, Partnership or Limited Liability Company), Part 3, Section I (5)(Irrevocable Trust), Part 3, Section I (21)(Other Entity) or Part 3, Section I (18)(Family Office), above (collectively, the foregoing "**Eligible Entity Accredited Investor Categories**");

(b) You are making an investment of at least $1,000,000 in the Fund, and

(c) Your investment in the Fund is not financed in whole or in part by any third party for the specific purpose of making the particular investment in the Fund.

☐ **5. Entity Accredited Solely by All Equity Owners' Accredited Investor Status**. You certify that all of the following statements are true:

(a) You are an Accredited Investor by virtue of certifying Part 3, Section I (22)(Entity Owned Entirely By Accredited Investors) and all of the equity owners are Accredited Investors from the Eligible Individual Accredited Investor Categories or the Eligible Entity Accredited Investor Categories;

(b) You are making an investment of at least the lesser of (i) $1,000,000 or (ii) $200,000 multiplied by the number of your equity holders if you have fewer than five equity holders;

(c) Each of your equity holders has a minimum investment obligation to you of at least $200,000 for individuals or $1,000,000 for legal entities;

(d) Your investment in the Fund is not financed in whole or in part by any third party for the specific purpose of making the particular investment in the Fund; and

(e) The minimum investment amount of each of your equity holders in you is not financed in whole or in part by any third party for the specific purpose of making the particular investment in the Fund.

PART 4 – TAX MATTERS

If Subscriber is a "non-U.S. person or entity," allocations of Fund income may be subject to withholding and taxation under the Internal Revenue Code of 1986, as amended ("Code"). Subscriber acknowledges that it may be required to file U.S. income tax returns. The Subscriber agrees that it will cooperate with the Manager as the Manager reasonably requests with respect to tax matters. The Subscriber hereby acknowledges that its failure to cooperate with the Manager may expose the Subscriber to taxes, interest and penalties and interest thereon. If the Subscriber is a foreign corporation, foreign partnership, foreign trust or foreign estate (as those terms are defined in the Code and the regulations thereunder), please contact the Manager. The Subscriber understands that the information contained in this

item may be disclosed to the Internal Revenue Service by the Company and that any false statement contained in this item could be punished by fine, imprisonment or both.

1. Subscriber certifies that the taxpayer identification number being supplied herewith by Subscriber is Subscriber's correct taxpayer identification number and that Subscriber is not subject to backup withholding under Section 3406 of the Code and the regulations thereunder?

   Yes ☐ No ☐

2. Subscriber certifies that Subscriber is not a "non-U.S. person" or, if an entity, that Subscribing entity is not a foreign corporation, foreign partnership, foreign trust or foreign estate, as those terms are defined the Code and the regulations thereunder?

   Yes ☐ No ☐

3. If Subscriber's non-foreign status changes or if any other information in this item changes, Subscriber agrees to notify the Manager within 30 days thereafter.

   Yes ☐ No ☐

If the Subscriber is a "United States person" for U.S. federal income tax purposes (i.e., a U.S. citizen or a U.S. resident), please complete and execute the Form W-9 in accordance with the instructions accompanying the form.

If the Subscriber is not a "United States person" for U.S. federal income tax purposes, please complete and execute Form W-8BEN or W-8BEN-E, if applicable, or the correct form as per the detailed instructions in Internal Revenue Service Forms and accompanying the forms. If the Subscriber is claiming benefits under an income tax treaty, it must provide a U.S. taxpayer identification number on Form W-8BEN or W-8BEN-E.

The relevant forms are available at www.irs.gov.

PART 5 – FOR ENTITY SUBSCRIBERS

If the Subscriber is an entity, please check the appropriate space in this section. In addition, please provide (i) a file-stamped copy of your incorporation or formation documents, as applicable, (ii) the names and titles of each individual duly authorized to execute and deliver, on behalf of the Subscriber, this Questionnaire and any documents contemplated herein and (iii) a complete list of names of each person who directly, or indirectly through intermediaries, is the beneficial owner of 25% or more of any voting or non-voting class of equity interests in the Subscriber. The Fund may request additional information from the Investor as appropriate.

☐ All of the following statements are true:

(i) The Subscriber was not formed for the purpose of investing in the Fund.

(ii) The Subscriber is not investing more than 40% of its total assets or committed capital, whichever is greater, in the Company.

(iii) The Subscriber does not permit equity owners to elect on an individual basis whether or not to participate in investments such as Interests of the Fund.

(iv) Each beneficial owner of the Investor has and will have the same proportionate interest in each of the Subscriber's investments.

If one or more of the statements above is false, each of the beneficial owners of an entity (in addition to the entity itself) must complete an Investor Questionnaire.

PART 6 – COMPLIANCE WITH THE USA PATRIOT ACT

To comply with applicable anti-money laundering/U.S. Treasury Department's Office of Foreign Assets Control ("OFAC") rules and regulations, you are required to provide the following information.

I. Payment Information.

1. A Subscriber may make its Capital Contributions in U.S. Dollars by wire transfer, ACH collection, check and/or conversion of cryptocurrency via BitPay Inc. (each, an "Approved Cryptocurrency"). The Subscriber elects to make the initial Capital Contribution to the Fund via (*check one*):

   ☐ Wire Transfer ☐ ACH Collection ☐ Check ☐ Approved Cryptocurrency

   If the Subscriber elects to make its initial Capital Contribution by wire transfer, ACH collection or check, please answer questions (2) through (4) below. If the Subscriber elects ACH collection, please complete and execute the One-Time Authorization for Direct Payment via ACH (ACH Debits) attached as Appendix B.

   If the Subscriber elects to make the initial Capital Contribution by conversion of an Approved Cryptocurrency, skip the remainder of Item I and Item II below. The Subscriber acknowledges and agrees that (i) a conversion of Approved Cryptocurrency into U.S. Dollars will occur via BitPay Inc. in accordance with its policies and procedures; and (ii) the Subscriber will be solely responsible for any and all fees in connection with the conversion.

2. Name of the bank from which your payment for acquiring Interests in the Company is being sent, by wire transfer, ACH collection or check (the "Payment Bank"):

   _____

3. Is the Payment Bank located in the United States or another "FATF Country"?

   Yes ☐ No ☐

   If yes, please answer question (4) below.
   If no, please provide the information described in Item II below.

4. Are you a customer of the Payment Bank?

   Yes ☐ No ☐

   If yes, skip Item II below. If no, please provide the information described in Item II below.

II. Additional Information.

THIS ITEM APPLIES ONLY TO INVESTORS WHO RESPONDED "NO" TO QUESTION I (3) OR I (4) ABOVE. IF YOU ANSWERED "YES" TO BOTH I (3) AND I (4) PLEASE SKIP THIS ITEM II.

The following materials must be provided to the Manager:

For Individual Investors

☐ A government issued form of picture identification (e.g., passport or driver's license).

☐ Proof of the individual's current address (e.g., current utility bill), if not included in the form of picture identification.

For Funds of Funds or Entities that Invest on Behalf of Third Parties Not Located in the United States or Other FATF Countries

☐ A certificate of due formation and organization and continued authorization to conduct business in the jurisdiction of its organization (e.g., certificate of good standing).

☐ An incumbency certificate attesting to the title of the individual executing the Subscription Documents on behalf of the prospective investor.

☐ A certificate attesting that the entity has adequate anti-money laundering policies and procedures in place that are consistent with the USA PATRIOT Act, OFAC and other relevant Federal, state or foreign anti-money laundering laws and regulations.

☐ A letter of reference from a local office of a reputable bank or brokerage firm which is incorporated, or has its principal place of business located, in the United States or other FATF Country certifying that the prospective investor (i.e., the fund of funds or the entity investing on behalf of third parties) has maintained an account at such bank/brokerage firm for a length of time and containing a statement affirming the prospective investor's integrity.

For All Other Entity Investors

☐ A certificate of due formation and organization and continued authorization to conduct business in the jurisdiction of its organization (e.g., certificate of good standing).

☐ An incumbency certificate attesting to the title of the individual executing the Subscription Documents on behalf of the prospective Investor.

☐ A letter of reference from a local office of a reputable bank or brokerage firm which is incorporated, or has its principal place of business located, in the United States or other FATF Country certifying that the prospective investor (i.e., the fund of funds or the entity investing on behalf of third parties) has maintained an account at such bank/brokerage firm for a length of time and containing a statement affirming the prospective investor's integrity.

☐ If the prospective investor is a privately-held entity, a complete list of the names of each person who directly, or indirectly through intermediaries, is the beneficial owner of 25% or more of any voting or non-voting class of equity interests of the prospective investor.

☐ If the prospective investor is a trust, a complete list of the current beneficiaries of the trust that have, directly or indirectly, 25% or more of any interest in the trust, the settlers or grantors of the trust, and the trustees.

Note: The Fund may request additional information from the Investor in order to meet its obligations under U.S. federal and state law. The Investor agrees that the Company may obtain, verify, and record information that identifies the Investor, by asking to see the Investor's government-issued identification, such as a driver's license, formation documents or other identifying documents (as applicable) or utilizing various databases for this purpose.

CARDONE EQUITY FUND 31, LLC
SUBSCRIPTION AGREEMENT AND INVESTOR QUESTIONNAIRE SIGNATURE PAGE

Date: _____

$_____
Dollar Amount of Capital Commitment

Price Per Combined Class A/Class B/Class D Unit: $1,000

Subscribers that are Individuals:

_____
(name of individual)

_____
(signature)

_____
(name of co-subscriber, if any)

_____
(signature of co-subscriber, if any)

Subscribers that are Entities:

_____
(name of entity)

_____
(signature)

Signatory Name: _____

Signatory Title: _____

The foregoing subscription is hereby accepted.

CARDONE CAPITAL LLC

By:_____
Name: Grant Cardone
Title: Manager

Date: _____

CARDONE EQUITY FUND 31, LLC
JOINDER AGREEMENT

The undersigned, desiring to enter into the Limited Liability Company Operating Agreement of Cardone Equity Fund 31, LLC, dated as of August 5, 2026, and as amended from time to time, hereby agrees to all of the terms of the Operating Agreement and agrees to be bound by the terms thereof and to become a Member thereunder, and the undersigned hereby joins in the execution and swears to this Operating Agreement and hereby authorizes this signature page to be attached thereto and to make corresponding amendments to the applicable schedules thereto.

Subscribers that are Individuals:

(name of individual)	*(name of co-subscriber, if any)*
(signature)	*(signature of co-subscriber, if any)*
(mailing address)	*(mailing address)*
(mailing address)	*(mailing address)*
(email)	*(email)*

Subscribers that are Entities:

(name of entity)

(signature)

Signatory Name: _____

Signatory Title: _____

(mailing address)

(mailing address)

(email)

_____
Date of Execution

CONSENT STATEMENT FOR ELECTRONIC DELIVERY OF FEDERAL SCHEDULE K-1 AND STATES' SCHEDULE K-1S EQUIVALENT

The Internal Revenue Service issued Revenue Procedure 2012-17 in February of 2012 outlining the requirements for furnishing to partners in electronic format Federal Schedule K-1 (Form 1065) Partner's Share of Income, Deductions, Credits, etc. This statement contains the required disclosures needed for Cardone Equity Fund 31, LLC (the "Fund") to furnish your Schedule K-1 to you via electronic means.

1. If you do not consent to receiving your Schedule K-1 electronically, a paper copy will continue to be mailed to you.
2. If you do consent to receiving your Schedule K-1 electronically, we will furnish each of your Schedule K-1s electronically going forward until you withdraw your consent. You will no longer receive a paper copy in the mail.
3. You may still request a paper copy of your Schedule K-1s even after providing consent for electronic delivery by writing to us (electronically or on paper) at the address listed in #10 below. We will not treat any such request as a withdrawal of consent.
4. You may withdraw consent by writing (electronically or on paper) to us at the address listed in #10 below.
5. Withdrawal of consent will take effect on the date it is received by the Fund, who will confirm in writing (electronically or on paper) the date on which the withdrawal is effective. A withdrawal of consent does not apply to a statement that was furnished electronically with consent, prior to the effective date of the withdrawal.
6. The Fund will cease to furnish electronic statements should you (1) withdraw your consent or (2) withdraw from the Fund.
7. Should your contact information change, please inform us at the address listed in #10 below.
8. If you consent, your Schedule K-1 will be made available only on our website at cardonecapital.com. In order to access your Schedule K-1, you will need Internet Explorer, or some other software for accessing the Internet, and Adobe Acrobat Reader to view the PDF file format. You will also need your username and password supplied by the Fund. Your Schedule K-1 will be available on our website until February of the following calendar year. You may be required to print Schedule K-1 and attach it to your federal, state or local tax return.
9. Once the Schedule K-1 is available on our website, you will receive notice via electronic mail under the subject heading "IMPORTANT TAX RETURN DOCUMENT AVAILABLE".
10. Please contact Cardone Capital LLC (electronically or on paper) at the address below with your consent, consent withdrawal, address changes or questions:

    Investor Relations
    Cardone Capital LLC
    18851 NE 29th Ave
    Aventura, FL 33180
    Phone: 305-407-0276
    invest@cardonecapital.com

The various state taxing authorities have not issued similar guidance with respect to the delivery of their Schedule K-1 equivalent forms. Absent any additional guidance from any other state taxing authorities, by consenting to this statement, you are consenting to receiving the Federal Schedule K-1 and all applicable state Schedule K-1 equivalent forms.

- - - -

Appendix A

Verification of Accredited Investor Status

Verifying Entity Name:_____ ("Verifying Entity")

Verifying Entity Address: _____
_____
_____

Date:_____

RE: VERIFICATION OF ACCREDITED INVESTOR STATUS

Dear Cardone Equity Fund 31, LLC:

In connection with _____'s ("Investor") intention to participate in a securities offering by Cardone Equity Fund 31, LLC (the "Issuer") pursuant to Rule 506(c) under the Securities Act of 1933, as amended, and the rules and regulations thereunder (collectively, the "Securities Act"), Verifying Entity hereby provides written confirmation of the following:

1. Verifying Entity qualifies as one of the following (please check one):

☐ A registered broker-dealer;

☐ An investment adviser registered with the Securities and Exchange Commission;

☐ A licensed attorney who is in good standing under the laws of the jurisdictions in which he or she is admitted to practice law; or

☐ A certified public accountant who is duly registered and in good standing under the laws of the place of his or her residence or principal office.

2. In accordance with Rule 506(c)(2)(ii) under the Securities Act, within three months prior to the date of this written confirmation, Verifying Entity has taken reasonable steps to verify that Investor is an "accredited investor" and has determined that Investor is an "accredited investor" as such term is defined in Rule 501 under the Securities Act, because (please check one):

☐ **1.** **Individual with Net Worth In Excess of $1 Million.** A natural person (not an entity) whose net worth, or joint net worth with his or her spouse or spousal equivalent, at the time of purchase exceeds $1 million. (In calculating net worth, you may include your equity in personal property and real estate, including, cash, short-term investments, stock and securities. Your inclusion of equity in personal property and real estate should be based on the fair market value of such property less debt secured by such property. You may not include the net value of your primary residence.)

☐ **2.** **Individual with a $200,000 Individual Annual Income or a $300,000 Joint Annual Income.** A natural person (not an entity) who had an individual income of more than $200,000 in each of the preceding two calendar years or who had joint income with his or her spouse or spousal equivalent in excess of $300,000 in each of the preceding two calendar years, and has a reasonable expectation of reaching the same income level in the current year.

☐ **3.** **Corporation, Foundation, Endowment, Partnership or Limited Liability Company.** An organization described in section 501(c)(3) of the Internal Revenue Code, corporation, Massachusetts or similar business trust, partnership, or limited liability company that has in excess

of $5 million of assets and was not formed for the specific purpose of acquiring Interests in the Company.

☐ **4.** **Revocable Trust.** A trust that is revocable by its grantors and each of whose grantors is an Accredited Investor. (If this category is checked, please also check the additional category or categories under which the grantor qualifies as an Accredited Investor. Additional documentation may be requested.)

☐ **5.** **Irrevocable Trust.** A trust (other than an ERISA plan) that (i) is not revocable by its grantors, (ii) has in excess of $5 million of assets, (iii) was not formed for the specific purpose of acquiring Interests in the Company, and (iv) is directed by a person who has such knowledge and experience in financial and business matters that such person is capable of evaluating the merits and risks of an investment in the Company.

☐ **6.** **Bank.** A bank, as defined in Section 3(a)(2) of the Securities Act, or any savings and loan association or other institution as defined in Section 3(a)(5)(A) of the Securities Act, whether acting in an individual or a fiduciary capacity.

☐ **7.** **Broker or Dealer.** A broker or dealer registered under Section 15 of the Securities Exchange Act of 1934, as amended.

☐ **8.** **Registered Investment Adviser.** An investment adviser registered pursuant to Section 203 of the Investment Advisers Act of 1940 or registered pursuant to the laws of a state.

☐ **9.** **Exempt Investment Adviser.** An investment adviser relying on the exemption from registering with the SEC under Section 203(l) or (m) of the Investment Advisers Act of 1940.

☐ **10.** **Insurance Company.** An insurance company as defined in section 2(13) of the Securities Act.

☐ **11.** **Investment Company.** An investment company registered under the Investment Company Act of 1940 or a business development company as defined in section 2(a)(48) of that act.

☐ **12.** **Small Business Investment Company.** A Small Business Investment Company licensed by the U.S. Small Business Administration under section 301(c) or (d) of the Small Business Investment Act of 1958.

☐ **13.** **Rural Business Investment Company.** A Rural Business Investment Company as defined in section 384A of the Consolidated Farm and Rural Development Act.

☐ **14.** **Government Plan.** Any plan established and maintained by a state, its political subdivisions, or any agency or instrumentality of a state or its political subdivisions, for the benefit of its employees, if such plan has total assets in excess of $5 million.

☐ **15.** **Employee Benefit Plan.** An employee benefit plan within the meaning of the Employee Retirement Income Security Act of 1974, if the investment decision is made by a plan fiduciary, as defined in section 3(21) thereof, which is either a bank, savings and loan association, insurance company or registered investment adviser, or if the employee benefit plan has total assets in excess of $5 million or, if a self-directed plan, with investment decisions made solely by persons that are Accredited Investors.

☐ **16.** **Private Business Development Company.** A private business development company as defined in Section 202(a)(22) of the Investment Advisers Act of 1940.

☐ **17.** **Licensed Representative.** A natural person who holds, in good standing, one of the following professional licenses: the General Securities Representative license (Series 7), the Private Securities

Offerings Representative license (Series 82), or the Investment Adviser Representative license (Series 65).

☐ **18.** **Family Office.** A "family office," as defined in rule 202(a)(11)(G)-1 under the Investment Advisers Act of 1940 (i) with assets under management in excess of $5 million, (ii) that is not formed for the specific purpose of acquiring the securities offered, and (iii) whose prospective investment is directed by a person who has such knowledge and experience in financial and business matters that such family office is capable of evaluating the merits and risks of the prospective investment.

☐ **19.** **Family Client.** A "family client," as defined in rule 202(a)(11)(G)-1 under the Investment Advisers Act of 1940, of a family office meeting the requirements in paragraph (18) above and whose prospective investment in the issuer is directed by such family office pursuant to paragraph (18)(iii) above.

☐ **20.** **Executive Officer or Director of the Company or Manager.** A natural person who is an executive officer, director or manager of the Company or Manager.

☐ **21.** **Other Entity.** Any entity, of a type not listed in paragraphs (3) – (16) or (22), not formed for the specific purpose of acquiring the securities offered, owning investments in excess of $5 million. For purposes of this paragraph, "investments" means investments as defined in Rule 2a51-1(b) under the Investment Company Act of 1940.

☐ **22.** **Entity Owned Entirely By Accredited Investors.** A corporation, partnership, limited liability company, private investment company or other entity each of whose equity owners is a natural person who is an Accredited Investor. (If this category is checked, please also check the additional category or categories under which each natural person qualifies as an Accredited Investor. Additional documentation may be requested.)

This written confirmation of Investor's status as an "accredited investor" may be relied upon by the Issuer in connection with any transaction it may conduct pursuant to Rule 506 under the Securities Act. It may not be used or relied upon by any other person for any other purpose.

Very truly yours,

_____
Print Name of Verifying Entity

By: _____
(Signature)

_____
Print Title (if applicable)

Appendix B

ONE-TIME AUTHORIZATION FOR DIRECT PAYMENT VIA ACH (ACH DEBITS)

Direct Payment via ACH is the transfer of funds from a consumer account for the purpose of making a payment.

I (we) authorize Cardone Equity Fund 31, LLC ("COMPANY") to electronically debit my (our) account (and, if necessary, electronically credit my (our) account to correct erroneous debits) as follows:

Select One: ❑ Checking Account ❑ Savings Account at the depository financial institution named below ("DEPOSITORY").

I (we) agree that ACH transactions I (we) authorize comply with all applicable law.

Depository Bank Name _____

Account Holder Name: _____

Routing Number: _____

Account Number: _____

Amount of debit (Dollar amounts authorized): _____

Date(s) (on or after): _____.

I (we) understand that this authorization is for one time only.

Name: _____(Please Print)

Signature: _____

Date: _____

If joint account, please complete:
Name: _____(Please Print)

Signature: _____

Date: _____